

**SUPREME COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK**

-----X
Robert Pluma,

Plaintiff,
- against -

NEW YORK CITY POLICE OFFICER PANICO, NEW
YORK CITY POLICE OFFICER ROJAS, NEW YORK
CITY POLICE OFFICER LIZARDO, NEW YORK CITY
POLICE OFFICER JORDAN, NEW YORK CITY POLICE
OFFICER DICKERSON, NEW YORK CITY POLICE
OFFICER CETLIN, NEW YORK CITY POLICE OFFICER
LEMUNYAN, NEW YORK CITY POLICE OFFICER
BLACKBURN, NEW YORK CITY POLICE OFFICER
VARGHESE, NEW YORK CITY POLICE OFFICER
AHANDA, NEW YORK CITY POLICE OFFICER GALVIN,
NEW YORK CITY POLICE OFFICER PIERRE, NEW
YORK CITY POLICE OFFICER OLAYOLINN, NEW
YORK CITY POLICE OFFICER BORG, NEW YORK CITY
POLICE OFFICER BUNGAY, NEW YORK CITY POLICE
OFFICER MCINTYRE, NEW YORK CITY POLICE
OFFICER KESSLER, NEW YORK CITY POLICE OFFICER
KONOIKO, NEW YORK CITY POLICE OFFICER
RODRIGUEZ, NEW YORK CITY POLICE OFFICER
VAREDEA, NEW YORK CITY POLICE OFFICER BRITO,
NEW YORK CITY POLICE OFFICER GOMEZ, NEW YORK
CITY POLICE OFFICER HALL, NEW YORK CITY POLICE
OFFICER BRAGG, NEW YORK CITY POLICE OFFICER
RODRIGUEZ, NEW YORK CITY POLICE OFFICER
APUZZO, NEW YORK CITY POLICE OFFICER
ALTADONNA, NEW YORK CITY POLICE OFFICER
STAPLE, NEW YORK CITY POLICE OFFICER HUANG,
NEW YORK CITY POLICE OFFICER RIVERA, NEW YORK
CITY POLICE OFFICER HAMILTON, NEW YORK CITY
POLICE OFFICER COLTER, NEW YORK CITY POLICE OFFICER
GONZALEZ, NEW YORK CITY POLICE OFFICER
FERRER, NEW YORK CITY POLICE OFFICER SANTOS,
NEW YORK CITY POLICE OFFICER ELIAS, NEW YORK
CITY POLICE OFFICER MCGINN, NEW YORK CITY
POLICE OFFICER RADIONOV, NEW YORK CITY POLICE
OFFICER MCDUFFIE, NEW YORK CITY POLICE
OFFICER PRECIO, NEW YORK CITY POLICE OFFICER
RAGUSA, NEW YORK CITY POLICE OFFICER DIBBLE,
NEW YORK CITY POLICE OFFICER BELGAY, NEW
YORK CITY POLICE OFFICER PITTELLI, NEW YORK

INDEX#:

COMPLAINT

Plaintiffs designate
New York County as
the Place of Trial.
The basis of venue is the
location of the incident.

CITY POLICE OFFICER KRAMER, NEW YORK CITY
POLICE OFFICER FIGUERIOU, NEW YORK CITY POLICE
OFFICER HAYES, NEW YORK CITY POLICE OFFICER
GLYNN, NEW YORK CITY POLICE OFFICER CHIN, NEW
YORK CITY POLICE OFFICER CHIN, NEW YORK CITY
POLICE OFFICER FITTERMAN, NEW YORK CITY POLICE
OFFICER LAURIA, NEW YORK CITY POLICE OFFICER
KIM, NEW YORK CITY POLICE OFFICER MONROE, NEW
YORK CITY POLICE OFFICER PERKIN,
NEW YORK CITY POLICE OFFICER ZWILLING, NEW YORK CITY
POLICE OFFICER CORTEZ, NEW YORK CITY POLICE OFFICER
SCHIAVONE, NEW YORK CITY POLICE OFFICER
SCARANO, NEW YORK CITY POLICE OFFICER WHELAN,
NEW YORK CITY POLICE OFFICER DELGADO,
NEW YORK CITY POLICE OFFICER GUILFOYLE, NEW YORK
CITY POLICE OFFICER MARTINEZ, NEW YORK CITY
POLICE OFFICER BOONE, NEW YORK CITY POLICE
OFFICER AUGUSTIN, NEW YORK CITY POLICE OFFICER
JACQUERET, NEW YORK CITY POLICE OFFICER SHAW,
NEW YORK CITY POLICE OFFICER MATARAZZO, NEW
YORK CITY POLICE OFFICER CAPOFARI,
NEW YORK CITY POLICE OFFICER RODRIGUEZ, NEW YORK
CITY POLICE OFFICER MURRAY, NEW YORK CITY POLICE
OFFICER SANTANA, NEW YORK CITY POLICE OFFICER
BUFFALINO, NEW YORK CITY POLICE OFFICER AKAYDIN,
NEW YORK CITY POLICE OFFICER CUCUZZA, NEW YORK
CITY POLICE OFFICER MCCANDLESS, NEW YORK CITY
POLICE OFFICER NODALNY, NEW YORK CITY POLICE
OFFICER RALEIGH, NEW YORK CITY POLICE OFFICER
CARRICATO, NEW YORK CITY POLICE OFFICER PAGLIONE,
NEW YORK CITY POLICE OFFICER GERENA, NEW YORK
CITY POLICE OFFICER GUY, NEW YORK CITY POLICE
OFFICER SANICCIARINI, NEW YORK CITY POLICE OFFICER
BELLINGER, NEW YORK CITY POLICE OFFICER COLON,
NEW YORK CITY POLICE OFFICER SMIKLE, NEW YORK
CITY POLICE OFFICER MATKOVIC, NEW YORK CITY
POLICE OFFICER DOUMASK, NEW YORK CITY
POLICE OFFICER OROZCO, NEW YORK CITY POLICE
OFFICER GURNIEK, NEW YORK CITY POLICE OFFICER
SINNOTT, NEW YORK CITY POLICE OFFICER DELACOURT,
DEFENDANTS.

Plaintiff ROBERT PLUMA, by his attorneys, STECKLOW COHEN & THOMPSON, complaining of the defendants, respectfully alleges as follows:

I. PRELIMINARY STATEMENT

1. Plaintiff ROBERT PLUMA brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

2. The Plaintiff ROBERT PLUMA was peaceably assembled at Zuccotti Park on the evening of December 31, 2011, intending to welcome in the New Year with his girlfriend, and with other citizens who believed in the goals of the Occupy Wall Street movement. An overwhelming force of New York City Police officers was present. These officers initiated physical confrontations with other individuals at Zuccotti Park. The police officers needlessly escalated these confrontations into violence. In so doing, multiple police officers used metal fencing as a weapon to push the crowd. The police officers deployed pepper spray targeting the group of which Mr. Pluma was a part. The Plaintiff was injured when he was blinded by the pepper spray, pushed and fell, breaking his dominant hand in a way that required surgery and rehabilitation.

IV. JURY DEMAND

3. Plaintiff ROBERT PLUMA respectfully demands a trial by jury of all issues in this matter.

COMPLIANCE WITH GEN. MUN. LAW § 50-I

4. A notice of claim was made and served upon the City of New York in compliance with section fifty-e of this chapter, and at least thirty days have elapsed since

the service of such notice and adjustment or payment thereof has been neglected or refused, and this action or special proceeding is commenced within one year and ninety days after the happening of the events upon which the claim is based.

V. THE PARTIES

5. Plaintiff ROBERT PLUMA ("the Plaintiff") is a resident of the State of New York.

6. That at all times hereinafter mentioned, the Defendant Police Officers, NEW YORK CITY POLICE OFFICER PANICO, NEW YORK CITY POLICE OFFICER ROJAS, NEW YORK CITY POLICE OFFICER LIZARDO, NEW YORK CITY POLICE OFFICER JORDAN, NEW YORK CITY POLICE OFFICER DICKERSON, NEW YORK CITY POLICE OFFICER CETLIN, NEW YORK CITY POLICE OFFICER LEMUNYAN, NEW YORK CITY POLICE OFFICER BLACKBURN, NEW YORK CITY POLICE OFFICER VARGHESE, NEW YORK CITY POLICE OFFICER AHANDA, NEW YORK CITY POLICE OFFICER GALVIN, NEW YORK CITY POLICE OFFICER PIERRE, NEW YORK CITY POLICE OFFICER OLAYOLINN, NEW YORK CITY POLICE OFFICER BORG, NEW YORK CITY POLICE OFFICER BUNGAY, NEW YORK CITY POLICE OFFICER MCINTYRE, NEW YORK CITY POLICE OFFICER KESSLER, NEW YORK CITY POLICE OFFICER KONOIKO, NEW YORK CITY POLICE OFFICER RODRIGUEZ, NEW YORK CITY POLICE OFFICER VAREDEA, NEW YORK CITY POLICE OFFICER BRITO, NEW YORK CITY POLICE OFFICER GOMEZ, NEW YORK CITY POLICE OFFICER HALL, NEW YORK CITY POLICE OFFICER BRAGG, NEW YORK CITY POLICE OFFICER RODRIGUEZ, NEW YORK CITY POLICE OFFICER APUZZO, NEW YORK CITY POLICE OFFICER ALTADONNA, NEW

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7. That at all times relevant to this action, the Defendant POLICE OFFICERS either personally or through their subordinates, agents, or employees, were

acting under color of state law and/or pursuant to the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

8. Each and all of the acts of the Defendant POLICE OFFICERS alleged herein were done by said defendants while acting within the scope and in furtherance of their employment by The City of New York, and were acting under the supervision of said department and according to their official duties.

VI. FACTS COMMON TO ALL CLAIMS

9. On the evening of December 31, 2011, the Plaintiff went to Zuccotti Park with his girlfriend.

10. The Plaintiff and his girlfriend chose to go to Zuccotti Park to welcome in the New Year with hopeful reflection upon the efforts of Occupy Wall Street to bring greater democracy and a fairer economic system to our country.

11. Zuccotti Park is open 24 hours, and the park was open that evening.

12. At the time the Plaintiff arrived, the police had set up metal barricades that surrounded most or all of the park.

13. Entry to the park was permitted only through gaps in these barricades, which were guarded by police.

14. There was an overwhelming police presence at the park; however, the police permitted people to enter the park.

15. At this time the Defendant POLICE OFFICERS were present at Zuccotti Park and were responsible for the safety of the civilians present there, including the plaintiff.

16. Those entering the park were subjected to search, although such search was probably unlawful under the circumstances.

17. The Plaintiff and his girlfriend entered the park and prepared to observe the approaching New Year.

18. The Plaintiff and others peacefully remained in the park for some time.

19. The Plaintiff became aware of activity in his vicinity.

20. The Plaintiff, acting as a citizen journalist, began to film the event.

21. The police used a metal barricade as a battering ram against a group of civilians within Zuccotti Park, of which the Plaintiff was a part.

22. Specifically, they lifted the metal barricade off the ground to above waist height, and pushed the metal into the group, pushing the group of people backwards.

23. The purpose of the using the metal barricade as battering ram on the group of people was to push the group of people, including the Plaintiff, backwards and to knock them down.

24. Using the metal barricades, the police did in fact push the group of people backwards and knock some of them down. One of those knocked down was the Plaintiff.

25. While the metal barricade was pushing into this group of people, two police officers discharged pepper spray across the group of people.

26. The two officers that did this were POLICE OFFICER VEGA and JOHN DOE SECOND PEPPER SPRAY OFFICER.

27. The police officers targeted the group of people as a whole.

28. At this time the Defendant POLICE OFFICERS were present and had a realistic opportunity to prevent this attack by their fellow officers, but failed to do so.

29. To the contrary, the Defendant POLICE OFFICERS joined in and contributed to the acts of POLICE OFFICER VEGA.

30. By their presence, and by maintaining a closed perimeter of metal barricades around the park, the Defendant POLICE OFFICERS restrained the free movement of the civilians present in order to facilitate the unlawful attack of Officer Vega and the police who were attacking the crowd with the metal barricade and the pepper spray.

31. The Defendant POLICE OFFICERS assisted in pushing against the crowd with the metal barricade(s).

32. The pepper spray struck the group of people as a whole.

33. The plaintiff, who was in the group of people, was struck by the pepper spray.

34. As a result of being struck by the pepper spray and as a result of the use of the metal barricade as a battering ram, the plaintiff was blinded, incapacitated, pushed back and knocked down.

35. The plaintiff sustained the spiral fracture to his hand when he fell.

36. As a result of being blinded, incapacitated, pushed back and knocked down, the plaintiff's liberty of movement was restricted. The plaintiff was unable to walk without help. He was moved a few feet away, where he lay on the ground and vomited from the effects of the police assault.

37. The plaintiff remained at the scene for a period of time before the incapacitating effects of the assault ameliorated sufficiently for the plaintiff to move on his own.

38. The Plaintiff unsuccessfully sought medical help at the scene.

39. Unable to find help, the Plaintiff and his girlfriend went to the hospital.

40. The Plaintiff was found to have multiple spiral fractures of his left hand requiring surgery.

41. The Plaintiff underwent surgery several days later.

42. The Plaintiff underwent months of physical therapy.

43. During his recovery, the Plaintiff was unable to perform basic tasks like tying his own shoelaces.

44. The Plaintiff, who worked with computers, could not type effectively.

45. When the Plaintiff attempted to perform the daily tasks of life that required two hands, he felt severe pain and discomfort.

46. When the Plaintiff attempted to perform the daily tasks of life that required the strength and precision of his dominant hand, he suffered not only pain and discomfort, but also frustration and anger.

47. The Plaintiff suffered fear and anxiety that his main hand, with its spiral fracture, would never get back to normal.

48. As a result of his injury, the Plaintiff ceased to participate in Occupy Wall Street events.

49. When the Plaintiff lost his job, it was hard for him to do the things necessary to find a job, with his broken dominant hand.

50. To this day, while the function of the Plaintiff's hand has returned to a n extent, the Plaintiff still feels discomfort and limited movement.

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

52. All of the aforementioned acts of Defendant POLICE OFFICERS , their agents, servants and employees, were carried out under the color of state law.

53. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States of America, in violation of 42 U.S.C. § 1983.

54. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

55. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of The City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

56. The Defendants, collectively and individually, while acting under color of state law, engaged in Constitutionally-violative conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

57. The aforementioned violations of the plaintiff's Constitutional rights were committed by Defendant POLICE OFFICERS.

58. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, out-of-pocket costs, and other special damages.

59. As a result of Defendant POLICE OFFICERS' impermissible conduct, the Plaintiff demands judgment against Defendant POLICE OFFICERS in an amount to be determined at trial, along with punitive damages, together with attorney's fees and costs.

SECOND CLAIM FOR RELIEF

FAILURE TO INTERVENE UNDER 42 U.S.C. §1983

60. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

61. Defendant POLICE OFFICERS had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights.

62. Defendant POLICE OFFICERS were present when Plaintiff was injured, and chose not to intervene during any of the events leading up to Plaintiff's injury, despite having realistic opportunities to do so.

63. Defendant POLICE OFFICERS chose not to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights despite having had realistic opportunities to do so.

64. Defendant POLICE OFFICERS chose not to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights despite having substantially contributed to the circumstances within which Plaintiff's rights were violated by their affirmative conduct.

65. As a result, the Plaintiff's constitutional rights were violated.

66. As a result, the Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, out-of-pocket costs, and other damages.

67. As a result of Defendant POLICE OFFICERS' impermissible conduct, the Plaintiff demands judgment against Defendants in an amount to be determined at trial, along with punitive damages, together with attorney's fees and costs.

THIRD CLAIM FOR RELIEF

EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

68. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

69. Plaintiff was subjected to excessive and unjustified force in violation of his rights as guaranteed under the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. § 1983.

70. The aforementioned violations of the plaintiff's Constitutional rights were committed by the Defendant POLICE OFFICERS.

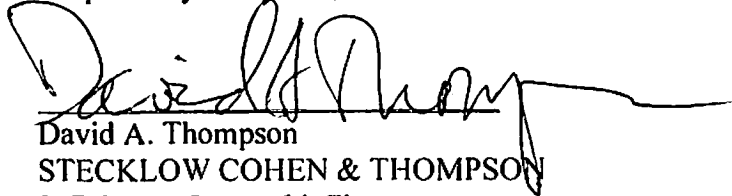
71. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, out-of-pocket costs, and other special damages.

72. As a result of Defendant POLICE OFFICERS' impermissible conduct, the Plaintiff demands judgment against Defendants in an amount to be determined at trial, along with punitive damages, together with attorney's fees and costs.

WHEREFORE and in light of the foregoing, it is respectfully requested that the Court award the plaintiff compensatory and punitive damages in an amount to be determined at trial, as well as attorneys fees and costs, and such other and further relief as the court may deem proper.

DATED: New York, New York
December 16, 2014

Respectfully submitted,

A handwritten signature in black ink, appearing to read "David A. Thompson", is written over a horizontal line.

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